All this casts doubt on the circumstantial evidence, and warrants circumspection and caution in concluding that Afzal was involved in a deep conspiracy.

Equally significant is Afzal's personal deposition of how he was drawn into secessionist militancy and crossed over to Azad Kashmir, but got disillusioned. As a surrendered militant, he was constantly harassed and subjected to extortion by the Special Task Force (STF). He claims that he was ordered by one Tariq, connected with the STF, to escort Mohammad to Delhi, and did so. This was never controverted.

The picture that emerges from the testimony is that of a person who does not readily lie and can be forthright to the point of incriminating himself. Minimally, this suggests that he is capable of acting in good faith, and not beyond reform.

Because Afzal did not commit murder, the death sentence verdict turns pivotally on the 'waging war against the state' charge. But such treason is marked by great ambiguity. The idea derives from the early medieval doctrine of *lese majeste,* which holds that any affront to the sovereign (the king, with his divine sanction), is always grave enough to deserve death.

A secondary premise is that Parliament House is an embodiment of sovereignty—not just metaphorically or symbolically. Therefore, attacking it is tantamount to waging war on India. This is surely a literalist over-reading. By this criterion, the members of the radical Dalit Panthers, who burned the Constitution in the 1970s, should have been hanged. Yet, the higher judiciary itself warned against such excess in 1951 vis- a-vis the Bihar police mutiny, during which the rebels fired on the army.

The inference that Afzal is guilty of waging war, murder and conspiracy is based on doubtful surmises. The element of doubt is so large that it would be unconscionable to extinguish a human life. President Kalam must act to prevent such miscarriage of justice. He should unhesitatingly commute Afzal's sentence. He has every power to review and reappraise the case. It is his moral and constitutional duty to apply humane criteria and ensure that misinterpretation of the law and anti-terrorist zeal do not result in death.

This essay first appeared in *Frontline*, 20 October 2006.